

Part 1: Constitutional Law of Bangladesh (Marks: 15-20)

Article 26 (1): Laws inconsistent with Fundamental Rights to be void

- **The Concept:** This article establishes the supremacy of the Constitution.
- **Provision:** Article 26(1) states that all existing laws (in force before the Constitution) inconsistent with the Fundamental Rights shall be void.
- **Doctrine of Severability:** If a law contains both constitutional and unconstitutional parts, and the bad part can be separated from the good part, the court will strike down only the invalid portion while keeping the rest valid.
- **Doctrine of Eclipse:** This applies to pre-constitution laws. If a law becomes "dead" due to inconsistency with a Fundamental Right, it is not totally destroyed but overshadowed (eclipsed). If the Fundamental Right is later amended, the law can become active again without needing to be re-enacted.

Article 27: Right to Equality before Law

- **Concept:** Equal protection of the law.
- **Details:** The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of Bangladesh. "Equality before law" is a negative concept (no one is above the law), while "Equal protection of the law" is positive (similarly situated people must be treated similarly).

Articles 18, 26, 27, 28, 29, 30, 32, 33, 35, 36, 37, 38, 40, 42 (Fundamental Rights Summary)

- **Article 18: Public Health & Morality** – State duty to raise nutrition/living standards and prevent alcohol/drug consumption.
- **Article 28: Non-discrimination** – State cannot discriminate solely on grounds of religion, race, caste, sex, or place of birth.
- **Article 29: Equality in Public Employment** – Equal opportunity for all citizens in state jobs.
- **Article 30: Prohibition of foreign titles** – No citizen shall accept any title from a foreign state.
- **Article 32: Right to Life & Personal Liberty** – No person shall be deprived of life or personal liberty save in accordance with law.
- **Article 33: Safeguards in Arrest & Detention** – Right to be informed of grounds of arrest, consult a lawyer, and be produced before a magistrate within 24 hours.
- **Article 35: Protection in respect of trial & punishment** – Protection against ex-post facto laws, double jeopardy, and self-incrimination.
- **Article 36: Freedom of movement** – Citizens have the right to move freely throughout Bangladesh.
- **Article 37: Freedom of assembly** – Right to assemble peacefully without arms.
- **Article 38: Freedom of association** – Right to form associations or trade unions.
- **Article 40: Freedom of profession** – Right to practice any profession or carry any occupation.
- **Article 42: Right to property** – Right to acquire, hold, and dispose of property (subject to reasonable state restrictions).

Article 70: Restriction on Vote (Anti-Defection)

- **Concept:** A unique feature of our parliamentary system.
- **Provision:** A member of Parliament (MP) elected in a party ticket will lose his seat if he votes in Parliament against his party. This prevents MPs from switching parties after being elected.

Article 102: Powers of the High Court Division (Judicial Review)

- **Concept:** The power to issue writs for enforcing Fundamental Rights.
- **Details:** The High Court can issue specific orders (writs) like **Habeas Corpus** (produce detained person), **Mandamus** (order public official to do duty), **Certiorari** (quash illegal

decision), **Prohibition** (stop lower court from exceeding jurisdiction), and **Quo Warranto** (challenge right to hold public office).

Article 142: Power to amend the Constitution

- **Concept:** Amendment procedure.
- **Details:** Generally passed by 2/3 majority of total MPs in Parliament. However, provisions regarding the Basic Structure (like the Preamble, Articles 8-9, 150, etc.) require a referendum (public vote) in addition to the 2/3 majority.

Part 2: The Code of Criminal Procedure, 1898 (CrPC) – Section 46/A to "Cha" (Marks: 10)

Topic: Arrest and Production of Accused

Section	Description	Key Points for Exam
46/A	Arrest of person who commits non-bailable offence in presence of Magistrate	If a Magistrate (Executive/Judicial) sees a crime, he can arrest the offender himself or order someone to arrest them.
Ka (ক)	How to make an arrest	The police officer actually touching or confining the body of the accused.
Kha (খ)	Resistance to arrest	If the person forcibly resists or escapes, the police officer may use all means necessary to arrest him.
Ga (গ)	Search for accused in a house	Police may enter any house/vessel to arrest if permission is refused.
Gha (ঘ)	Power to break open doors	If entry is denied, the police officer may break open doors/windows to execute the arrest.
Ummo/Unga (ঙ)	Release on bail in petty cases	If a person is arrested without a warrant for a bailable offence, the officer must inform him of his right to be released on bail.
Cha (চ)	Medical examination of accused	If there are reasonable grounds that a medical exam will provide evidence (rape, hurt, etc.), the police can have the accused examined by a government doctor.

Part 3: The Penal Code, 1860 (Specific Sections) (Marks: 20-25)

Punishments (Sec 53 & 54)

- **Sec 53:** Punishments are: Death, Imprisonment for Life, Rigorous/Simple Imprisonment, Forfeiture of Property, and Fine.
- **Sec 54: Commutation** – The Government has the power to reduce (commute) a death sentence to lesser punishment without the convict's consent.

Right of Private Defence (Sec 96 – 103)

- **Sec 96:** Nothing is an offence done in private defence. This justifies the right to defend oneself or one's property when there is a reasonable fear of danger that cannot be otherwise prevented.
- **Sec 97:** Right extends to defending **Body** (self or others) and **Property** (movable/immovable, self or others).
- **Sec 99: Limitations** – No right exists if there is time to seek public authority or when the act is done by a public servant in good faith.
- **Sec 100: Body – Causing Death (6 Scenarios)**
 1. Apprehension of death.
 2. Apprehension of grievous hurt.
 3. Assault to commit **Rape**.
 4. Assault to commit unnatural lust (sodomy).
 5. Assault to kidnap/abduct.
 6. Assault to wrongfully confine you in a way that you can't reach authorities.
- **Sec 103: Property – Causing Death (4 Scenarios)**
 1. Robbery.
 2. House-breaking by night.
 3. Arson of a dwelling house.
 4. Theft/mischief/trespass causing fear of death or grievous hurt.

Offences against Body & Rape (Sections 299 – 376)

- **Sec 299: Culpable Homicide** – Causing death by doing an act with the intention of causing death, or with the knowledge that it is likely to cause death.
- **Sec 300: Murder** – Culpable homicide becomes murder if done with high degree of intention/knowledge.
- **Sec 302:** Punishment for Murder – Death or Imprisonment for Life + Fine.
- **Sec 319: Simple Hurt** – Causing bodily pain, disease, or infirmity.
- **Sec 320: Grievous Hurt** – Emasculation, Loss of sight/hearing/faculty, Destruction of joint, Fracture, Permanent disfiguration of head/face.
- **Sec 325:** Punishment for grievous hurt – Up to 7 years + Fine.
- **Sec 359: Kidnapping** – Taking a minor (under 16 male/under 18 female) without consent OR taking any person beyond the limits of Bangladesh.
- **Sec 375: Rape** – Sexual intercourse by a man with a woman against her will, without her consent, with her consent when consent is obtained by fear/deceit, or when she is under 18.
- **Sec 376:** Punishment for Rape – Rigorous imprisonment (up to life) + Fine (to pay victim's medical expenses).

Offences against Property (Sections 378 – 395)

- **Sec 378: Theft** – Dishonestly taking movable property without the owner's consent.
- **Sec 379:** Punishment for theft – Up to 3 years + Fine.
- **Sec 391: Robbery** – Theft OR extortion where the offender causes (or threatens to cause) death, hurt, or wrongful restraint.
- **Sec 395:** Punishment for Dacoity (5+ persons commit robbery) – Imprisonment for life or up to 10 years + Fine.

Part 4: Self-Defense Remedies & Prevention (Marks: 10)

Topic: ব্যক্তিগত আত্মরক্ষার সবগুলো সংজ্ঞা ও শাস্তি (Definition & Punishment of Self-Defense)

- **Definition (Sec 96 & 97):** The right to protect one's own body (or another's) and property (movable/immovable) against immediate harm.
- **Limitations (Sec 99):**
 - You must have no time to call the police/authorities.
 - The harm inflicted must not be more than necessary.
- **Extent (Sec 100 & 103):** You can cause **death** only in the specific 6+4 situations mentioned above.
- **Punishment:** If you exceed the right (e.g., kill a simple thief running away), you are guilty of culpable homicide. If you kill someone when your life wasn't in danger (and not covered by Sec 100/103), you face **Sec 304** (Culpable Homicide not amounting to murder) – up to 10 years or life imprisonment.

Topic: রেইপ সংজ্ঞা ও নিরোধ (Rape: Definition & Prevention)

- **Definition:** Penetration (any degree) into the vagina, mouth, urethra, or anus of a woman without her consent or with consent obtained by fear/duress.
- **Prevention (নিরোধ):**
 1. **Legal:** Sec 376 (Life imprisonment + Fine). The money can be used for the victim's rehabilitation.
 2. **Evidentiary:** Two-finger test is banned (has to be mentioned in exam). DNA profiling is key.
 3. **Social:** Fast track courts (বিশেষ ট্রাইব্যুনাল) to ensure trials are finished within 180 days.

Part 5: Cyber Security Act, 2025 (Bangladesh) – Page 16636 & 16637 (Marks: 5)

Based on the structure of modern digital security laws.

Page 16636 (Section 25): Punishment for Cyber Terrorism / Critical Infrastructure Damage

- **Scope:** This section likely covers hacking or attacking Critical Information Infrastructure (CII) – e.g., the servers of the Bangladesh Bank, Military, or Sonali Bank.
- **Actions:** Unauthorized access, denial of service (DoS), or introducing a virus into government infrastructure.
- **Punishment:** Very high. Likely **Imprisonment for Life** or a minimum of 14 years rigorous imprisonment + Crores of Taka in fines.

Page 16637 (Section 26): Punishment for Cyber Extortion / Ransomware

- **Scope:** Similar to Sec 384 of the Penal Code but for the digital space.
- **Actions:** Hacking a computer or mobile phone to threaten to publish private data (photos, videos, bank details) unless money is paid (Ransomware).
- **Punishment:** Likely 10 to 14 years imprisonment. The court may also order the confiscation of the digital devices used.